

September 07, 2016



U.S. Department  
of Transportation

East Building, PHH-30  
1200 New Jersey Avenue S.E.  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 20085  
(SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATIONS:
  - a. This special permit authorizes the transportation in commerce of unapproved lighters which have been removed from their inner packaging and are being sent for disposal. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.308(a)(3), 173.308(a)(4), 173.21(h)(2)(i) in that a lighter and its inner packaging must be approved, except as specified herein.
5. BASIS: This special permit is based on the application of EQ Industrial Services, Inc., dated January 4, 2016, submitted in accordance with § 107.105, the public proceeding thereon, and additional information dated September 1, 2016.

Tracking Number: 2016096228

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Materials Description                                |                           |                       |               |
|----------------------------------------------------------------|---------------------------|-----------------------|---------------|
| Proper Shipping Name                                           | Hazard Class/<br>Division | Identification Number | Packing Group |
| Lighters or Lighter refills<br><i>containing flammable gas</i> | 2.1                       | UN1057                | N/A           |
| Solids containing flammable<br>liquid, n.o.s.                  | 4.1                       | UN3175                | II            |

7. SAFETY CONTROL MEASURES:a. PACKAGING - Packaging prescribed is as follows:

(1) A UN 1A2 removable head steel drum certified to the PG II performance level for liquids with a hydrostatic pressure rating of at least 100 kPa with a capacity not to exceed 5 gallons. Lighters packaged in this way must have their fuel release and igniter switches isolated from activation or be completely surrounded in an inert, cushioning, non-combustible packing material, or

(2) A UN 1A2 removable head steel drum certified to the PG II performance level for liquids with a hydrostatic pressure rating of at least 100 kPa containing one or more plastic packagings not exceeding five gallons in size. The void space in the inner packaging must be filled with a non-combustible liquid which will displace air (e.g. water) or an inert cushioning, non-combustible packing material, and the inner packaging closed. Void space in the UN 1A2 must be completely filled with an inert cushioning, non-combustible packing material.

b. MARKING -

(1) Each outside packaging must be marked "DOT-SP 20085" as required by § 172.301(c).

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(2) Each outside packaging must be durably marked in contrasting lettering on the side "CAUTION: THIS PACKAGE CONTAINS LIGHTERS WHICH MAY BE LEAKING FLAMMABLE VAPORS".

c. OPERATIONAL CONTROLS -

(1) Transportation is authorized for disposal only.

(2) Packaging that directly contains the unapproved lighters, upon being closed, shall not be reopened for the purpose of adding more lighters.

(3) For transportation by water in a closed transport vehicle or a closed freight container, the following warning must be affixed to the access doors:

WARNING MAY CONTAIN EXPLOSIVE MIXTURES WITH AIR  
KEEP IGNITION SOURCES AWAY WHEN OPENING.

The warning must be on a contrasting background and must be readily legible from a distance of 8 m (26 feet).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this special permit and the HMR.

b. Transportation by highway must be by private or contract motor carrier.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this special permit.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

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special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover  
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm). Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode